



Article: 94

Warrant Article Title:

RESOLUTION / AUTOMATIC LICENSE PLATE RECOGNITION
SAFEGUARDS AND DRIVER PRIVACY

Warrant Article Text:

To see if the Town will vote to adopt a resolution opposing widespread deployment of automatic license plate recognition as a form of municipal surveillance absent strong guidelines, such as local safeguards, a transparent public process, and state-level driver privacy protections; or take any action related thereto.

Requested By:

Samuel Polk and ten registered voters

Report Excerpt:

This article has not been included in a report.

Vote Language:

That Town Meeting does and hereby resolves as follows:

To see if the Town will vote to adopt the following Resolution, or take any action related thereto:

WHEREAS, "Automatic License Plate Recognition" ("ALPR") systems are networks of fixed or mobile cameras and software that capture images of vehicle license plates and convert them into searchable data, typically with associated date/time and location information;

WHEREAS, ALPR systems can create detailed location histories about residents, visitors, and workers, and therefore raise civil liberties concerns and risks of misuse, over-collection, and

unauthorized disclosure;

WHEREAS, poor data governance and inadequate security controls have, in some jurisdictions, resulted in the public exposure or improper disclosure of sensitive vehicle-location information;

WHEREAS, in some jurisdictions, ALPR systems and ALPR-derived location data have been used to identify or track individuals seeking reproductive healthcare or engaging in constitutionally protected First Amendment activity, including peaceful protest;

WHEREAS, federal immigration enforcement agencies, including U.S. Immigration and Customs Enforcement (“ICE”), have used access to large ALPR databases to locate and apprehend individuals, and nationwide data-sharing practices can create pathways for local data to be searched far beyond the community that collected it;

WHEREAS, ALPR systems are increasingly being deployed by municipalities in Massachusetts, including in nearby communities such as Waltham and Boston;

WHEREAS, in other nearby communities, including Cambridge, Watertown, and Natick, ALPR programs have been paused or canceled following public concerns about privacy, data-sharing, procurement process, oversight, and vendor compliance with local directives or contractual obligations;

WHEREAS, the Town of Arlington has a long history of pursuing equity and safety for all residents, including through the Town’s 2017 Community Trust Act Resolution, the Town’s Community Equity Audit process, the Town’s 2025 Racial Equity Statement, and the Arlington Police Department (APD)’s published Federal Immigration Law policy emphasizing non-participation in civil immigration enforcement in support of community trust in public

safety;

WHEREAS, as an accredited agency, APD develops and regularly reviews policies consistent with applicable law, accreditation standards, and professional best practices, and invites, considers, and incorporates community feedback through established Town channels, including engagement with relevant Town boards and commissions, to inform policy updates;

WHEREAS, Arlington previously piloted an ALPR program, and APD leadership discontinued the program after internal review indicated that the system's alerts were largely associated with minor traffic matters and appeared to fall disproportionately on lower-income community members, raising concerns about equity;

WHEREAS, Arlington has similarly recognized the need for strong safeguards when surveillance technologies are considered or deployed, including through Article 21 of the 2025 Annual Town Meeting, "ACCEPTANCE OF LEGISLATION / CHAPTER 399 OF THE ACTS OF 2024" (which included statutory data governance provisions for school bus violation detection monitoring systems, including limits on use, retention, and reporting), and through the 2022 Town Meeting face surveillance resolution entitled "A Resolution that Government use of Face Surveillance should be Further Limited in Order to Conform with Our Values";

NOW, THEREFORE, BE IT RESOLVED that Town Meeting opposes any new deployment or substantial expansion of ALPR systems by or on behalf of the Town of Arlington unless and until the Town has publicly adopted, after public review and comment, (i) a publicly available ALPR impact report describing the proposed system and purpose and assessing equity, civil-rights, and privacy impacts and mitigations; and (ii) a publicly available ALPR use policy setting forth authorized uses and key safeguards for retention and deletion, access controls, logging and auditing,

and any permitted data-sharing agreements;
BE IT FURTHER RESOLVED that the ALPR impact report and ALPR use policy shall together, at minimum, address the ALPR system's purpose and prohibited uses; equity impacts and civil-rights and civil-liberties implications, and proposed mitigations; retention and deletion practices; access controls, logging, and auditing; any data-sharing or standing-access/real-time-feed arrangements; vendor restrictions on secondary uses (e.g., training of vendor-owned artificial intelligence or machine learning models); and annual aggregate public reporting;

BE IT FURTHER RESOLVED that Town Meeting urges the Select Board and Town Manager not to propose or enter into new contracts for, or substantial expansions of, ALPR systems unless and until strong statewide driver-privacy protections are enacted and robust local safeguards are adopted through a transparent public process;

BE IT FURTHER RESOLVED that Town Meeting expresses its support for state driver-privacy legislation, including H.3755, "An Act Establishing Driver Privacy Protections," and any substantially similar successor legislation that protects Massachusetts drivers by limiting the collection, retention, use, and sharing of ALPR data and other vehicle-location information, and urges Arlington's state legislative delegation to support and prioritize such measures; and

BE IT FURTHER RESOLVED that Town Meeting directs the Town Clerk to transmit copies of this resolution to Arlington's state legislative delegation and to any other officials the Select Board deems appropriate.